1

The Keshav Singh Case

Who would have thought that a pamphlet distributed by a local politician would paralyse administrative machinery, strain relations between state institutions and provoke a constitutional crisis? This is precisely what happened in 1964. It took the collective efforts of several Supreme Court judges, high court judges, MPs and MLAs, and, ultimately, the prime minister and chief justice of India to restore equilibrium. This chapter presents the events leading up to and following the crisis that arose towards the end of Nehru's tenure as prime minister.

~

Keshav Singh was a resident of Gorakhpur in Uttar Pradesh, about 300 kilometres east of the state capital, Lucknow. He was a worker of the Socialist Party, an opposition party of 'much noise but little electoral success'[1] in Uttar Pradesh. On one occasion, he successfully generated some 'noise' among opposition ranks and in the Congress party, which governed the state, by publishing a pamphlet in collaboration with two of his colleagues. This pamphlet, entitled 'Exposing the Misdeeds of Narsingh Narain Pandey',[2] alleged that Pandey, a Congress party MLA, was corrupt. The pamphlet was signed by its three authors, and distributed locally in Gorakhpur as well as in the vicinity of the legislative assembly in Lucknow.

This pamphlet did not go down well with the Congress party MLAs or Pandey, who once listed the reading of books (but not pamphlets) as one of